

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on August 1, 2022. The complaint is directed against AYUNTAMIENTO DE MONCADA with NIF P4617300A (hereinafter, the respondent or the City Council). The reasons for the complaint are as follows:

The complainant participated in a selection process called by the City Council of Moncada. On \*\*\*DATE.1, they filed an appeal against the correction of the XXX exercise.

They state that the resolution of the appeal has not been personally notified to them. However, they indicate that the resolution has been published on the Electronic Headquarters of the respondent, revealing the allegations made and their resolution, as well as their first and last name.

Along with their complaint, they provide:

- Appeal dated \*\*\*DATE.1, submitted by the complainant to the City Council of Moncada.
- Minutes No. \*\*\*MINUTES.1
- Minutes No. \*\*\*MINUTES.2

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the City Council of Moncada for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on October 14, 2022, as stated in the acknowledgment of receipt in the file.

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On November 7, 2022, a response was received from the City Council of Moncada indicating:

The City Council states that the resolution of the appeal filed by the complainant was not published on its electronic headquarters, but rather the minutes of a session held by the Technical Selection Body (hereinafter, OTS), where the proposal for the resolution of said appeal, which is the responsibility of the Mayor, is recorded.

The respondent highlights that the resolution of the appeal has been electronically notified to the complainant in a timely manner.

Although the name and surname of the complainant can be observed in the minutes of the session held by the Technical Selection Body on July 15, 2022, the City Council emphasizes that this publication is due to reasons of publicity and transparency, which are guiding principles of public activity.

In this regard, the respondent refers to Article 55 of the Consolidated Text of the Basic Statute of Public Employees, to Articles 2 and 5 of Law 19/2013, of December 9, on Transparency, Access to Public Information and Good Governance, and to the seventh additional provision of the LOPDGDD. Additionally, the City Council mentions in its allegations the report 178/2014 from the Legal Advisory Office of the AEPD.

To conclude, the respondent refers to the right of access to relevant information in the process, which participants in selection processes have, stating that this right of access to information includes access to the personal data of other participants, in order to verify compliance with the guiding principles of the right to access public employment (impartiality, publicity, transparency) and in accordance with the constitutional principles of equality, merit, and capacity.

THIRD: On November 1, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On March 12, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a sanctioning procedure against the respondent for:

- An alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed,

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may be considered a proposal for resolution. In the present case, the agreement to initiate the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made any allegations against the agreement to initiate the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned agreement to initiate is considered in this case a proposal for resolution.

In light of all that has transpired, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

#### PROVEN FACTS

FIRST: The City Council of Moncada has published on the internet (on its Electronic Headquarters and on its website) the following minutes, relating to (...).

- Minute No. \*\*\*MINUTE.1.

- Minute No. \*\*\*MINUTE.2.

This is evidenced by the evidence collected by AEPD personnel on September 15, 2022 (screenshots from the Electronic Headquarters of the City Council of Moncada).

As well as the diligence dated March 1, 2024, which includes screenshots taken on the aforementioned date, showing that Minute No. \*\*\*MINUTE.2 continued to be published on the Electronic Headquarters of the City Council of Moncada. It also reflects that both Minute No. \*\*\*MINUTE.1 and Minute No. \*\*\*MINUTE.2 were published on the website of the aforementioned City Council.

SECOND: The content of the minutes was accessible to any person who consulted the Electronic Headquarters and the website of the City Council of Moncada.

THIRD: Minute No. \*\*\*MINUTE.1, dated June 16, 2022, reflects the content of the meeting held by the Technical Selection Body (OTS) of the call for the selection of (...), for the review of the XXX opposition exam conducted by (...).

The minute mentions the name and surname of the complainant twice, reflects the grades initially obtained by the complainant, and the grade after the review, concluding by stating that "(...)". It also includes the questions posed by the candidate to the Technical Selection Body and the responses received, analyzing in detail how the complainant answered the various questions (...), highlighting, on numerous occasions, the aspects in which the OTS considers that the complainant has made mistakes, has responded incorrectly or incompletely.

Below are some examples:

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(...).

FOURTH: Minute No. \*\*\*MINUTE.2, dated July 15, 2022, reflects the content of the meeting held by the Technical Selection Body of the call for the selection of (...), in which the preparation of the proposal for resolution of the appeal filed by (...) continues.

In it, the name and surname of the complainant appears five times. It also reflects the grades initially obtained by the complainant, and the grade after the review, as well as the final grade of the candidate in the XXX exercise as (...).

Furthermore, it contains the response that the Technical Selection Body provides to each of the grounds on which the appeal filed by the complainant is based.

It refers to circumstances related to the development of the third exercise that affect the complainant (...). It also justifies the reasons why the OTS considers that the complainant did not respond correctly to several of the questions posed in (...).

Below are some examples:

(...).

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

### Preliminary Issues

The City Council of Moncada, like any other public entity, is obliged to comply with Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data.

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-GDPR-, and the Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights -LOPDGDD- regarding the processing of personal data carried out, understanding personal data as "any information relating to an identified or identifiable natural person."

An identifiable natural person is considered to be one whose identity can be determined, directly or indirectly, particularly by means of an identifier, such as a name, identification number, location data, an online identifier, or one or several elements specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that person.

Furthermore, processing should be understood as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of enabling access, alignment, combination, restriction, erasure, or destruction."

Considering the above, the City Council of Moncada would have processed the personal data of the

claimant.

The City Council carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR:

“data controller’ or ‘controller’: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its appointment may be provided for by the law of the Union or of the Member States.”

III

Infringement of Article 5.1 c) of the GDPR

Article 5.1.c) of the GDPR, Principles relating to processing, states the following:

“1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’)”

In the case examined in this sanctioning file, the City Council of Moncada has published two minutes (numbers XX and XX) on the internet, a proven fact first, prepared by the Technical Selection Body (hereinafter, OTS) of the call for selection (...), which the claimant submits along with their complaint. On September 15, 2022, the AEPD collected evidence of the publication of said minutes (nº XX and XX) on the notice board of the Electronic Headquarters of the City Council of Moncada.

On March 1, 2024, it was noted in a record that both minutes continued to be published on the internet. Minute No. XX, on the City Council's website, and minute No. XX, both on the Electronic Headquarters and on the City Council's website.

The content of the minutes was accessible to anyone who consulted the Electronic Headquarters and the website of the City Council of Moncada (proven fact second).

Currently, the aforementioned minutes continue to be published on the internet.

Minute No. XX

Minute No. XX has been sent to the AEPD by the claimant along with their complaint.

As highlighted in the proven fact third, it reflects the content of a meeting held by the members of the OTS on \*\*\*DATE.2, in order to review the XXX opposition exercise carried out by the claimant, (...).

The minute mentions the name and surname of the claimant on two occasions. Throughout it, the questions posed by the candidate to the OTS and the responses received are reflected, and it is also analyzed in detail how the claimant responded to the various questions (...), highlighting, on numerous occasions, the aspects in which the OTS considers that the claimant has made mistakes, has answered incorrectly or incompletely.

The minute reflects the grades obtained by the claimant initially, and the grade after the review, and concludes by stating that “(…).”

Minute No. XX

As highlighted in the proven fact fourth, it refers to a meeting held by the OTS on \*\*\*DATE.3. In this meeting, the preparation of the resolution proposal of the appeal filed by the claimant against the XXX exercise of the (...) continued.

The minute mentions the name and surname of the claimant five times.

In this case, responses are provided to each of the grounds on which the appeal filed by the claimant is based. It refers to circumstances related to the development of the XXX exercise that affect the claimant (...). It also justifies the reasons why the OTS considers that the claimant would not have answered correctly to several of the questions posed in (...).

The minute reflects the grades obtained by the claimant initially, and the grade after the review, as well as the final grade of the candidate in the XXX exercise as (...).

Due to the transfer of the complaint to the City Council, the responding party has alleged that the publication of minute No. XX “is due to reasons of publicity and

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transparency, guiding principles of public activity.”, developing this assertion in the fourth allegation of its writing dated November 7, 2022.

Furthermore, in the fifth allegation of the document from the City Council dated November 7, 2022, it states:

“FIFTH.- In light of all the aforementioned, the right of access to relevant information regarding the process of the participants in the selection processes is evident, which includes access to the personal data of third-party participants in the same processes, in order to verify compliance with the guiding principles of the right to access public employment, such as impartiality, publicity, and transparency, and in accordance with the constitutional principles of equality, merit, and capacity.”

1. Need to reconcile the principles of publicity and transparency in access to public service and the right to data protection

First of all, it is necessary to highlight that the principle of publicity and transparency of selection processes does not exclude the application of the data protection principles set forth in Article 5 of the GDPR.

The principle of proactive responsibility (one of the main novelties arising from the entry into force of the GDPR) imposes on the data controllers and processors the duty to take data protection into account from the design stage and by default, which entails the obligation to analyze the risk to the rights and freedoms of the participants that the application of the principle of transparency entails. In relation to this issue, the report from the Legal Advisory Office of the AEPD 0002/2022 analyzes what the AEPD's criteria has been regarding the reconciliation of the principles of publicity and transparency in access to public service and the right to data protection:

“Having said the above, it is appropriate to analyze what the criterion of this Agency has been regarding the reconciliation of the principles of publicity and transparency in access to public service and the right to data protection.

Resolution R/2593/2017 dated 29/09/2017 issued in the procedure for declaring Infraction AP 2\_2017, in which the publication on the internet, in a selection process, of the lists of admitted and excluded candidates and the lists with the provisional qualifications, and the possibility of downloading the corresponding PDF document, where the following is indicated:

Regarding the subject matter of the complaint, once the call for applications has been published and the participation requests have been received, the competitive selection process would begin, which, as the term suggests, must be applicable to and for all members of the group aspiring to pass the announced tests, competing against each other in merits and capacity. Once the call and the bases have been published, the subsequent procedures will affect a specific and qualified circle. The exposure of data within that circle is adequate, proportionate, and serves its purposes. These purposes are those of the affected parties in the procedure, for example, to challenge acts they consider arbitrary or that harm their interests, as well as to compute deadlines for corrections and/or claims. To assert that transparency and publicity should prevail simply because access to the data of the admitted/excluded candidates or those provisionally qualified is generally available, in this specific case, lacks justification and greatly exceeds the purpose of the data processing of the affected parties. Therefore, the rest of the public, those who are not subjected to such tests, lack a legitimate basis to access the names and surnames along with the NIF of each candidate or their qualifications. This is not proportionate to the purpose of the process, and does not affect transparency, since third parties who are not going to be examined do not compete. Such access by any person to the data is invasive and contrary to the principle of minimization and quality of data in its processing (Article 4.1 of the LOPD). Thus, third parties unrelated to the procedure should not have access from the outset to documents or data of the processing in which they hold no defined legal position. The provisional list of admitted and excluded candidates is an act related to the internal processing of the selection process. The right of a non-participant in the procedure may, if applicable, be promoted on a case-by-case basis, as a right of access with specific access rules related to the Transparency Law

(...)

It would be less intrusive and more in line with what is provided for in the data protection regulations if its publication affected and could be viewed only by those who are competing, not by the general public.

Resolution R/3081/2017 dated 24/11/2017 issued in the procedure for declaring Infraction AP 12\_2017, in which the publication on the website of the Junta de Comunidades de Castilla-La Mancha of the data of two minors was reported, including the scoring for the allocation of school places, which included disability data.

The manner of proceeding of the accused has not been proportionate to the purpose of the process, since access by any person to the data of the applicants is invasive, as they do not participate in it, and the content of the scoring is also invasive. LOPD. It is therefore advised,

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that access to the provisional and definitive lists be provided only to the applicants, whether with keys and passwords assigned during the online submission or in another similar manner.

Resolution R/2726/2017 dated 17/10/2017 issued in the procedure for declaring Infraction AP 17\_2017, in which the publication openly via the internet in a selection process of the lists of admitted and excluded for the Teaching Body of Secondary Education Professors is reported, expressing the cause of exclusion, where in Proven Fact 2, it is indicated that:

By resolution of 16/05/2016, the General Director of Teaching Staff and Academic Organization indicated that the provisional list of admitted and excluded to be part of the lists of candidates for interim appointments in the summoned specialties would be published on the bulletin board of the Ministry and on the educational portal of the Ministry of Education. For such access and viewing, neither a key nor a password is required, allowing any person, whether or not they participated in the process, to access and view the content.

And the Resolution continues in terms similar to those indicated above:

Therefore, the rest of the public, those who do not participate in such tests, lack a legitimate basis for accessing the data of surnames and names along with the NIF of each candidate or the causes of exclusion. Furthermore, in this case, there is a disproportion in explicitly stating the reason for the exclusion. The reason, in this case, does not relate to the lack of accreditation of disability but rather to the degree of incapacity recognized by the competent authority. To avoid having to explicitly state this reason, the accused should foresee in the call generic keys related to the reasons for exclusion and subsequently provide the affected individual with specific information so that they can contest it if deemed appropriate. The manner of proceeding of the accused is not suitable for the purpose of the process, as access by any person to the data of the applicants is invasive, given that they do not participate in it, and the content of the reason for exclusion is also invasive, infringing Article 4.1 of the LOPD.

And finally, Resolution R/1600/2018 issued in the Procedure for Declaration of Infraction AP\_45/2018, which will be referenced later, states that it is appropriate to access such lists through prior identification limited to the participants.

In conclusion, as can be seen, the criterion of this Agency has been that in accordance with the principle of proportionality provided in Article 4 of the now repealed LOPD, measures should be established to prevent third parties unrelated to the procedures in question from accessing the personal information of the participants.” (the underlining is ours).

2. Prior assessment before the publication of information containing personal data of the participants in the selection process:

Furthermore, the report from the Legal Office of the AEPD 0002/2022 indicates:

“Now, regarding how such publication should be carried out, or, in other words, how to reconcile the principle of publicity and transparency of selection processes with the right to data protection, it is first necessary to highlight an example of the doctrine that has been upheld by the courts.

First, the Supreme Court in Judgment No. 2487/2016 of November 22, starts from the following

premise:

Publicity is a necessary condition to ensure respect for the principles of equality, merit, and capacity; it cannot be asserted that there are phases of selection processes of a private nature, nor that candidates do not have the right to know the exercises of those with whom they compete when they claim their fundamental right to access public employment.

For its part, the Judgment of April 26, 2012, of the First Section of the Administrative Litigation Chamber of the National Court, which in turn cites the ruling in appeal 215/2010, stated (the underlining is ours):

"Therefore, one of the exceptions to the requirement of consent for the processing of data is the collision with general interests or with other rights of superior value that diminish the protection of data due to the preference that should be granted to that other interest. In the present case, since it is a procedure of competitive concurrence, we must pay attention to what Article 103 of the Constitution states when it affirms that the Public Administration serves the general interests objectively and acts in accordance with the principles of effectiveness, hierarchy, decentralization, deconcentration, and coordination, with full submission to the Law and to the Right. (paragraph 1) and when it states in paragraph 3 that "The Law shall regulate the status of the..."

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public officials, access to public service in accordance with the principles of merit and capacity..." (all of this in relation to what is provided in Article 23 of the Spanish Constitution, which we will refer to later). Obviously, the guarantees required for the processing of personal data cannot serve to overshadow or annul these general requirements that mandate that processes be conducted in compliance with minimum requirements of transparency and publicity. The superiority of these other values suggests that in this case it should be understood that the consent of the interested party for the processing of the data in the note consisting of its communication by the now-recurrent union was not required.

From this perspective, we must conclude that the consent of those individuals participating in a competitive selection process for the processing of the qualifications obtained in that process is not required, as this serves as a guarantee and requirement for the other participants to ensure the integrity and impartiality of the procedure in which they compete. (...)

It is true that Organic Law 15/1999 does not expressly provide exemptions or exceptions to the regime of personal data processing contained therein based on the guarantees of transparency of competitive processes, so it will be necessary to weigh the conflicting interests to determine which of them should prevail. Having conducted this weighing, and assessing the circumstances that are present here, it is clear to this Court that in this case the guarantee of publicity and transparency of the competitive process must prevail over the right to data protection. (It is not uncommon for this Chamber to have to carry out this type of weighing or assessments; it suffices to refer to the judgment of appeal 331/205; DF 2/2010 or 862/2009).

Therefore, it will be appropriate to uphold the appeal and annul the contested resolution based on the prevalence of the general interest, taking into account that, as is natural, such use will only be protected within the purposes related to the same competitive selection process in application of the limits set forth in Article 4 of the LOPD (...).

That is to say, it is argued that a weighing exercise must be carried out, and that the guarantee of publicity and transparency in a competitive selection process must prevail, considering the specific case, over the right to data protection.

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Now, it is relevant to refer to the limits of Article 4 of the LOPD, that is, to proportionality, which today must be understood as referring to the principle of minimization." (the underlining is ours).

3. Entry into force of the GDPR and the LOPDGDD: application of measures from the perspective of minimization that allow the coexistence of the principle of publicity and transparency, which informs competitive selection processes, with the fundamental right to the protection of personal data:

The Report of the Legal Cabinet of the AEPD 0002/2022 continues analyzing:

"Considering the above, the entry into force of the GDPR and the LOPDGDD entails, among other issues, the application by the controllers and processors of the principle of active responsibility and, as a result, the risk analysis and the application of principles such as data protection by design and by default, as analyzed below.

(...)

Indeed, in application of the proactive responsibility principle that the data controllers are entitled to, they must take into account the 'data protection by design and by default' established in Article 25 of the GDPR.

1. Taking into account the state of the art, the cost of application, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity that the processing entails for the rights and freedoms of natural persons, the data controller shall apply, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively implement the principles of data protection, such as data minimization, and to integrate the necessary safeguards into the processing, in order to comply with the requirements of this Regulation and protect the rights of the data subjects.

2. The data controller shall apply appropriate technical and organizational measures to ensure that, by default, only personal data that are necessary for each specific purpose of the processing are processed. This obligation shall apply to the amount of personal data collected, to the extent...

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of its processing, its retention period, and its accessibility.

Such measures will ensure in particular that, by default, personal data is not accessible, without the intervention of the individual, to an indeterminate number of natural persons.

(...)

In the same vein, Recital 78 of the GDPR states that:

(78) (...) In order to demonstrate compliance with this Regulation, the data controller must adopt internal policies and implement measures that comply in particular with the principles of data protection by design and by default. Such measures could consist, among others, of minimizing the processing of personal data, pseudonymizing personal data as soon as possible, providing transparency regarding the functions and processing of personal data, allowing data subjects to monitor the processing of data, and enabling the data controller to create and improve security elements.

(...)

As can be observed, data protection by design and by default is closely linked to the principle of minimization (...)

For its part, the LOPDGDD in CHAPTER I General Provisions. Active Responsibility Measures establishes in Article 28 under the heading "General Obligations of the Controller and Processor" the following:

1. The controllers and processors, taking into account the elements listed in Articles 24 and 25 of Regulation (EU) 2016/679, shall determine the appropriate technical and organizational measures that must be applied to ensure and demonstrate that the processing is in compliance with the aforementioned regulation, with this organic law, its implementing regulations, and the applicable sectoral legislation. In particular, they shall assess whether it is necessary to carry out a data protection impact assessment and the prior consultation referred to in Section 3 of Chapter IV of the



aforementioned regulation.

2. For the adoption of the measures referred to in the previous paragraph, the controllers and processors shall take into account, in particular, the greater risks that could arise in the following cases:

a) When the processing could generate situations of discrimination, identity theft or fraud, financial losses, damage to reputation, loss of confidentiality of data subject to professional secrecy, unauthorized reversal of pseudonymization, or any other significant economic, moral, or social harm to the affected parties.

(...)

c) When the processing of the special categories of data referred to in Articles 9 and 10 of Regulation (EU) 2016/679 and Articles 9 and 10 of this organic law or data related to the commission of administrative offenses is not merely incidental or accessory.

(...)

e) When the processing of data of groups of affected individuals in a situation of special vulnerability is carried out, particularly minors and persons with disabilities.

f) When mass processing occurs involving a large number of affected individuals or entails the collection of a large amount of personal data.

(...)

It should also be noted that the LPACAP recognizes in its Article 13 as Rights of individuals in their relations with Public Administrations, in its subsection h) the right to the protection of personal data, and in particular to the security and confidentiality of the data contained in the files, systems, and applications of the Public Administrations.”

And in its Article 40.5, it provides that:

“The Public Administrations may adopt the measures they consider necessary for the protection of personal data contained in resolutions and administrative acts when these are addressed to more than one interested party.”

Taking the above into account, the data controller of the participants' data in the selective process in question, after analyzing the possible risks to the rights and freedoms of the participants, must apply measures from the perspective of minimization and data protection by default that allow for their coexistence with the principle of publicity and transparency that inform competitive selection processes.” (the underlining is ours).

4. Access via the internet to personal data related to selective processes:

In this regard, report 0002/2022 from the Legal Office of the AEPD indicates several issues, among which the following stands out:

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“Therefore, and as a conclusion, the following measures are proposed as adequate to the principle of data minimization, confidentiality, and data protection by design and by default, in relation to the principle of publicity and transparency that should inform the selection processes for access to public service, differentiating access to publications via the internet from access to publications on physical notice boards at the corresponding offices:

Regarding access via the internet.

In terms of access, establish restricted access with a username and password for participants in the selection process, understood as those who have formalized the corresponding application, or through the use of an electronic ID or digital certificate.

It should be noted that Article 25.2 of the GDPR states that such measures will ensure, in particular, that by default, personal data is not accessible, without the intervention of the person, to an indeterminate number of natural persons.

(...)” (the underlining is ours).

In the final part of the report, the Legal Cabinet of the AEPD reiterates:

“For the rest of the individuals, non-participants in the selection process, the publication on the internet related to the selection process will contain those acts or phases of the process without any indication of personal data, even pseudonymized.”

In the case examined in this sanctioning file, the City Council of Moncada has published the full content of minutes No. XX and XX on its Electronic Headquarters. These minutes reflect both the name and surname of the complainant, as well as their initial grades, reviewed grades, and the final grade of the exercise. They also detail all aspects in which the Technical Selection Body considered that the candidate had erred or that the response provided by them was incomplete.

There is no record that the City Council, prior to this publication, had conducted an analysis of the possible risks to the rights and freedoms of the complainant. Nor is there any indication that it weighed, in light of the circumstances present in the particular case, how to adequately reconcile publicity and transparency with respect for the fundamental right to data protection of the complainant.

The publication was directed to the general public, despite the fact that the vast majority were third parties unrelated to the selection process.

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Regarding the other participants in the process, it is worth considering whether the publication of the full content of both minutes was appropriate, based on the principle of data minimization, in circumstances where the OTS had confirmed the grading (...) of the complainant and where there is no record that another candidate had submitted any type of complaint or appeal regarding the grade obtained by the complainant after the review.

The document from the City Council dated November 7, 2022, in which it responds to the transfer of the complaint and request for information by the AEPD, refers to Law 19/2013, of December 9, on transparency, access to public information, and good governance.

This regulation also considers it necessary to carry out a reasoned assessment of the public interest in the disclosure of information and the rights of those affected whose data appears in that information, especially in relation to the fundamental right to the protection of personal data.

In this regard, Article 15 of that Law, relating to the protection of personal data, provides in its third section:

“3. When the requested information does not contain specially protected data, the body to which the request is directed shall grant access after a sufficiently reasoned assessment of the public interest in the disclosure of the information and the rights of those affected whose data appears in the requested information, particularly their fundamental right to the protection of personal data. For the purpose of this assessment, that body shall particularly take into consideration the following criteria:

- a) The least harm to the affected parties resulting from the passage of the deadlines established in Article 57 of Law 16/1985, of June 25, on the Spanish Historical Heritage.
- b) The justification by the applicants of their request in the exercise of a right or the fact that they are researchers and motivate access for historical, scientific, or statistical purposes.
- c) The least harm to the rights of the affected parties in the event that the documents only contained merely identifying data of those parties.
- d) The greater guarantee of the rights of the affected parties in the event that the data contained in the document may affect their privacy or security, or refer to minors.”

In this case, there is no record that the City Council has received any request regarding access to the content of those minutes. There is also no record that the City Council

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has conducted a reasoned assessment of the public interest in the disclosure of the information and the fundamental right to the protection of personal data of the complainant.

For the reasons stated, it can be understood that the City Council of Moncada has violated the content of Article 5.1.c) of the GDPR.

#### IV

Classification and qualification of the infringement of Article 5.1 c) of the GDPR

The aforementioned infringement of Article 5.1 c) of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;" In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall be subject to a three-year statute of limitations: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

#### V

Sanction for the infringement of Article 5.1 c) of the GDPR

Article 83 "General conditions for the imposition of administrative fines" of the GDPR paragraph 7 establishes:

"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

Additionally, Article 77 "Regime applicable to certain categories of controllers or processors" of the LOPDGDD provides the following:

"1. The regime established in this article shall apply to the processing for which they are responsible or which they carry out:

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration (...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which they are hierarchically subordinate, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regime that is applicable. Likewise, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations

for processing that have not been duly attended to is accredited, the resolution imposing the sanction shall include a reprimand naming the responsible official and shall order the publication in the Official State Gazette or the corresponding autonomous gazette.

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it shall publish on its website, with due separation, the resolutions referred to the entities in paragraph 1 of this article, with express indication of the identity of the controller or processor that has committed the infringement.

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(...)”

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 5.1.c) of the GDPR, as typified in Article 83.5 of the GDPR. The sanction to be imposed is the declaration of infringement.

## VI

### Adoption of measures

Having confirmed the infringement, it is appropriate to impose on the responsible party the adoption of adequate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, which states that each supervisory authority may “d) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame.”

It is noted that failure to comply with the order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

### RESOLVES:

FIRST: TO DECLARE that AYUNTAMIENTO DE MONCADA, with NIF P4617300A, has infringed the provisions of Article 5.1.c) of the GDPR, an infringement classified in Article 83.5 of the GDPR.

SECOND: TO ORDER AYUNTAMIENTO DE MONCADA, with NIF P4617300A, that pursuant to Article 58.2.d) of the GDPR, within the timeframes specified below, from the moment this resolution becomes final and enforceable, to demonstrate compliance with the following measures:

1. Within one month:

Remove from its Electronic Headquarters and website the content of minutes No. XX and XX, submitted by the complainant along with their complaint.

2. Within six months:

Establish, by the Ayuntamiento de Moncada, the necessary measures to ensure that the publication of personal data of candidates for public employment processes, called by said Ayuntamiento,

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respects the provisions of Article 5.1 c) of the GDPR (data minimization principle).

THIRD: NOTIFY this resolution to AYUNTAMIENTO DE MONCADA.

FOURTH: COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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